SERVICE CONTRACT
BETWEEN
IOWA DEPARTMENT OF PUBLIC HEALTH
AND
PONDERA SOLUTIONS
FY19 Service Contract

This Agreement for professional services and other deliverables (this "Agreement"), made and effective as of January 1, 2019, by and between the State of Iowa, acting by and through the Iowa Department of Public Health (the "Department") and Pondera Solutions, LLC (the "Vendor"), a Delaware Limited Liability company (formally, Pondera Solutions, Inc). The parties agree as follows:

SECTION 1. PURPOSE AND TERM

1.1 Purpose. The parties have entered into this Agreement for the purpose of retaining Vendor to provide professional services related to access to searchable public information for the purpose of locating individuals who are involved in public health disease investigations by the Department and the State of Iowa (the "State"), as more fully described in this Agreement.

1.2 Term. The initial term of this Agreement is from January 1, 2019, through December 31, 2019, unless terminated earlier in accordance with the terms of this Agreement. After expiration of the initial term, the Department shall have the option to extend/renew this Agreement for up to five additional one-year renewal terms. The decision to extend the Agreement will be at the sole option of the Department and may be exercised by the Department by providing written notice to Vendor.

1.3 IowaGrants. It is the Contractor's sole responsibility to ensure appropriate individual(s) have registered within IowaGrants. The Contractor acknowledges that all assigned individuals to the Grant Tracking site have full rights (add, modify, and delete) for all Grant Tracking components including contractual forms, reporting forms, and claims submission.

The Contractor designates Denise Mendoza as the Grantee Contact in IowaGrants (www.IowaGrants.gov) who shall regulate and assign access of appropriate individuals to this grant site.

All contract-related communications shall occur through the correspondence component of the grant site within IowaGrants.

1.4 Key Personnel for Project Implementation. The following individual(s) shall be considered key personnel for purposes of fulfilling work and services of this contract:

Department Personnel

Name	Title	Email Address	Phone Number
Randy Mayer	Bureau Chief	Randall.Mayer@idph.iowa.gov	515-242-5150
George Walton	Program Consultant	George.Walton@idph.iowa.gov	515-281-4936

Contractor Personnel

Name	Title	Email Address	Phone Number
Amanda Huston	Project Director	Amanda.huston@ponderasolutions.com	850-445-3851
Denise Mendoza	Controller	DMendoza@PonderaSolution.com	916-389-7863

SECTION 2. DEFINITIONS

In addition to any other terms that may be defined elsewhere in this Agreement, the following terms shall have the following meanings:

2.1 "Confidential Information" means, subject to any applicable State and federal laws and regulations, including but not limited to Iowa Code Chapters 22, 139A, or 141A, any confidential or proprietary information disclosed by either party (a "disclosing party") to the other party (a "receiving party") that, at the time of disclosure, is confidential under Iowa law, is designated as confidential (or like designation), is disclosed in circumstances of confidence, or would be understood by the parties, exercising reasonable business judgment, to be confidential. Confidential Information does not include any information that: (i) was rightfully in the possession of the receiving party from a source other than the disclosing party prior to the time of disclosure of the information by the disclosing party to the receiving party; (ii) was known to the receiving party prior to the disclosure of the information by the disclosing party; (iii) was disclosed to the receiving party without restriction by an independent third party having a legal right to disclose the information; (iv) is in the public domain or shall have become publicly available other than as a result of disclosure by the receiving party in violation of this Agreement or in breach of any other agreement with the disclosing party; (v) is independently developed by the receiving party without any reliance on Confidential Information disclosed by the disclosing party; (vi) is disclosed or is required or authorized to be disclosed pursuant to law, rule, regulation, subpoena, summons, or the order of a court, lawful custodian, governmental agency or regulatory authority, or by applicable regulatory or professional standards; or (vii) is disclosed by the receiving party with the written consent of the disclosing party.

2.2 "Data" mean information related to an individual involved in a disease investigation, including, but not limited to first name, middle name, last name; age; date of birth; current and historical addresses (street, city, state, zip code); social security numbers; phone numbers; driver's license information; places of employment; social and family contacts; email addresses and Web identities/profiles; aliases; date of death.

2.2 "Deliverables" mean any tangible materials to be prepared by Vendor and delivered to the Department, as further identified in and provided pursuant to Section 6 of this Agreement.

SECTION 3. LEGAL AUTHORITY

3.1 Iowa Code Chapters 139A and 141A contain provisions related to investigation and control of communicable and infectious diseases in Iowa. Iowa Code Chapter 139A contains provisions related to communicable and infectious diseases other than HIV and AIDS, and Iowa Code Chapter 141A contains provisions related to HIV and AIDS. People diagnosed with communicable and infectious diseases are reportable to the Department by medical providers and laboratorians (Iowa Code section 139A.3, section 141A.6). The Department is authorized to conduct investigations to identify all individuals reasonably believed to have been exposed to the disease, illness, or health condition and to investigate all such cases for sources of infection to ensure that such cases are subject to proper control measures (Iowa Code section 139A.3A). Reports to the department that include the identity of persons infected with a sexually

transmitted disease or infection, and all such related information is confidential (Iowa Code section 139A.30). HIV/AIDS surveillance data related thereto, including paper and electronic versions of these records, are confidential under Iowa law (Iowa Code section 141A.9). However, Iowa Code section 141A.3 authorizes the Department to utilize federal and state moneys appropriated for HIV-related activities in a manner consistent with guidelines established by the U.S. Department of Health and Human Services.

SECTION 4. DESCRIPTION OF INFORMATION

4.1 Description of Information. Information searched by the Department will include name, address, email address, social security number, phone numbers, employer information, and other personal information of persons involved in disease investigations.

4.2 Information Retention and Review. Vendor will not review searches conducted by Department staff unless requested by the Department or as otherwise required by law. The Department retains the right to request a review of a staff member's searches up to 6 months after the search is completed.

SECTION 5. COMPENSATION AND ADDITIONAL RIGHTS AND REMEDIES

5.1 Compensation. In consideration of Vendor providing the Department with the Deliverables in accordance with the terms and conditions of this Agreement, Vendor shall be entitled to receive the fees or other compensation associated with such Deliverables as specified in a Statement of Work, subject to all terms and conditions of this Agreement, including, without limitation Section 5.2 (Invoices). The Department shall not be obligated to pay any other compensation, fees, expenses, costs, charges or other amounts to Vendor in connection with this Agreement or any Statement of Work. All fees and compensation payable hereunder to Vendor are fixed, not-to-exceed amounts, and Vendor shall not be compensated on a time and materials basis. [It is expressly understood and agreed that in no event will the total fees or compensation to be paid under the initial Statement of Work exceed the sum of $45,000.] Vendor is not entitled to payment for any Deliverable provided under this Agreement or any Statement of Work if the Department reasonably determines that such Deliverable has not been satisfactorily or completely delivered or performed, or that such Deliverable fails to meet or conform to any applicable Specifications or that there is a material Deficiency with respect to such Deliverable. In no event shall the Department be obligated to pay Vendor any fees, costs, compensation or other amounts in excess of the amount specified in a Statement of Work for any one or more Deliverables, unless the Department otherwise agrees to pay such fees, costs, compensation other amounts pursuant to a written Change Order or an amendment to this Agreement executed by the Department. No payment, including final payment, shall be construed as acceptance of any Deliverables with Deficiencies or incomplete work, and Vendor shall remain responsible for full performance in strict compliance with the terms and conditions of this Agreement. Vendor's acceptance of the last payment from the Department shall operate as a release of any and all claims related to this Agreement that Vendor may have or be capable of asserting against the Department or the State. No advance payments shall be made for any Deliverables provided by Vendor pursuant to this Agreement.

5.2 Billings. The Contractor shall complete and submit an invoice within IowaGrants.gov for services rendered in accordance with this Contract upon execution of this contract. The invoice shall comply with all applicable rules concerning payment of such claims. The Department shall pay all approved invoices in arrears and in conformance with Iowa Code section 8A.514 and 11 Iowa Administrative Code 41.1(8A). The Department may pay in less than sixty (60) days, as provided in Iowa Code section 8A.514. However, an election to pay in less than sixty (60) days shall not act as an implied waiver of Iowa Code section 8A.514.

Unless otherwise agreed in writing by the parties, the Contractor shall not be entitled to receive any other payment or compensation from the State for any goods or services provided by or on behalf of the Contractor under this Contract. The Contractor shall be solely responsible for paying all costs, expenses and charges it incurs in connection with its performance under this Contract.

SECTION 6. SCOPE OF WORK

6.1 Statement(s) of Work. Vendor shall provide the Department with access to an online tool (i.e., Web-based service) that provides continuous access (24 hours a day; 7 days a week) to searchable public data sets and information for the purpose of locating individuals who are involved in public health disease investigations by the Department. Data will be submitted through an encrypted data transmission to ensure confidentiality of searches. System shall include ability to discover associations between persons and/or entities, and visualize complex relationships as indicated in Section 6.2 below; shall accommodate up to 13 users; shall allow the users to access the system from multiple devices; and shall allow review of user queries by the Department supervisor.

6.2 Search Variables. Data set shall include first name, middle name, last name; age; date of birth; current and historical addresses (street, city, state, zip code); social security numbers; phone numbers; driver's license information; places of employment; social and family contacts; email addresses and Web identities/profiles; aliases; date of death.

6.3. Ongoing Costs. Vendor's fee for subscription users for those named users identified in Section 6.5 below is $45,000.00 (13-Accurint and 3-JX users) for the 12-month term of this Agreement which amount is due and payable upon execution of this Agreement.

6.4 Deliverables. Vendor shall deliver the Pondera Dashboard with the LexisNexis' Accurint product.

6.5 Subscription Users. The Department has designated the following approved 13 subscription users:

Jodie Liebe
Gina Mallett
Shannon Wood
Mary Costello
Linda McQuinn
Alagie Jatta
George Walton
Shane Scharer
Maggi Foreman
Meredith Heckmann
Casey Ward
Robert Ramaekers
Casey Young

Any changes to the above named users require written notice to the Vendor. Any additional users will require an amendment to this Section 6 and may require additional fees.

SECTION 7. SECURITY AND PROTECTION OF INFORMATION

7.1 Vendor and their authorized agents shall not allow public disclosure of any information transferred under this Agreement in any manner that identifies any specific individual, or in any manner that is otherwise inconsistent with the applicable law identified in Sections 2 or 3.

7.2 Vendor shall institute procedures to ensure that adequate safeguards are established to provide protection against unauthorized access or disclosure of all information received pursuant to and in accordance with this Agreement. Information received pursuant to this Agreement shall be utilized only to the extent necessary to administer this Agreement, and shall not be disclosed to any other third party agencies or individuals.

7.3 All authorized individuals identified by Vendor shall sign the Department's Confidentiality Agreement. Vendor and their authorized individuals will maintain the confidentiality of transferred information. Authorized individuals of Vendor will be notified that penalties exist for the release of confidential information collected pursuant to Iowa Code Chapters 139A and 141A.

SECTION 8. OWNERSHIP AND INTELLECTUAL PROPERTY

8.1 Data Ownership. All Data (whether in electronic or hard copy form, and regardless of who creates, collects, develops, generates, inputs, transmits, submits, processes, stores, enters or otherwise provides the Data) are and shall remain the exclusive property of the Department, and the Department shall own and retain any rights in and to such Data, and Vendor acknowledges and agrees that notwithstanding any reformatting, modification, reorganization or adaptation of the Data (in whole or in part) by any party or person, or the creation of derivative works from the Data, the same shall remain the exclusive property of the Department.

8.2 All rights in and to the Vendor's Fraud Detection as a Service solution and its contents, exclusive of the Department's Data, is and shall remain the sole property of Vendor, including any updates, upgrades, or derivative works. The system described in Section 6 is being provided to the Department as a service and no interest in nor ownership of such system (exclusive of Department Data) or any part thereof shall pass to the Department.

SECTION 9. DEFAULT AND TERMINATION

9.1 Termination for Cause by the Department. The Department may terminate this Agreement upon written notice for the breach by Vendor of any material term, condition or provision of this Agreement, if such breach is not cured within thirty (30) days or such longer time period specified in the Department's notice of breach or any subsequent notice or correspondence delivered by the Department to Vendor, provided that cure is feasible. In addition, the Department may terminate this Agreement effective immediately without penalty or legal liability and without advance notice or opportunity to cure for any of the following reasons:

9.1.1 Vendor furnished any statement, representation, warranty or certification in connection with this Agreement, that is false, deceptive, or materially incorrect or incomplete;

9.1.2 Vendor or any of Vendor's officers, directors, employees, agents, subsidiaries, affiliates, contractors or subcontractors has committed or engaged in fraud, misappropriation, embezzlement, malfeasance, misfeasance, or bad faith;

9.1.3 Dissolution of Vendor or any parent or affiliate of Vendor owning a controlling interest in Vendor;

9.1.4 Vendor terminates or suspends its business;

9.1.5 Vendor's authorization to engage in business either in Iowa or where organized is suspended, terminated, revoked or forfeited;

9.1.6 Vendor has failed to comply with any applicable international, federal, state, or local laws, rules, ordinances, regulations or orders when performing within the scope of this Agreement;

9.1.7 The Department determines or believes the Vendor has engaged in conduct that has or may expose the Department or the State to material liability.

The Department's right to terminate this Agreement shall be in addition to and not exclusive of other remedies available to the Department, and the Department shall be entitled to exercise any other rights and pursue any remedies, in law, at equity, or otherwise.

9.2 Termination for Convenience. Following thirty (30) days written notice, the Department may terminate this Agreement in whole or in part for convenience without the payment of any penalty or incurring any further obligation or liability to Vendor. Termination for convenience can be for any reason or no reason at all.

9.3 Termination Due to Lack of Funds or Change in Law. Notwithstanding anything in this Agreement to the contrary, and subject to the limitations set forth below, the Department shall have the right to terminate this Agreement without penalty or liability and without any advance notice as a result of any of the following:

9.3.1 The legislature, governor, or a federal funding agency fails in the sole opinion of the Department to appropriate funds sufficient to allow the Department to either meet its obligations under this Agreement or to operate as required and to fulfill its obligations under this Agreement; or

9.3.2 If funds are de-appropriated, reduced, not allocated, or receipt of funds is delayed, or if any funds or revenues needed by the Department to make any payment hereunder are insufficient or unavailable for any other reason as determined by the Department in its sole discretion; or

9.3.3 If the Department's authorization to conduct its business or engage in activities or operations related to the subject matter of this Agreement is withdrawn or materially altered or modified; or

9.3.4 If the Department's duties, programs or responsibilities are modified or materially altered; or

9.3.5 If there is a decision of any court, administrative law judge or an arbitration panel or any law, rule, regulation or order is enacted, promulgated or issued that materially or adversely affects the Department's ability to fulfill any of its obligations under this Agreement or the operation of the [System].

The Department shall provide Vendor with written notice of termination pursuant to this section.

9.4 Termination for Cause by Vendor. Vendor may only terminate this Agreement upon written notice of the breach by the Department of any material term, condition or provision of this Agreement, if such breach is not cured within sixty (60) days of the Department's receipt of Vendor's written notice of breach.

SECTION 10. INSURANCE

Vendor shall, at its sole expense, maintain in full force and effect, with insurance companies admitted to do business in the State of Iowa. Vendor's insurance shall, among other things, insure against any loss or damage resulting from or related to Vendor's performance of this Agreement regardless of the date the claim is filed or expiration of the policy. All insurance policies required by this Agreement shall: (i) remain in full force and effect for the entire term of this Agreement; and (ii) not be canceled, reduced or changed without the Department's prior written consent.

SECTION 11. CONTRACT ADMINISTRATION

11.1 Independent Contractor. Vendor is an independent contractor performing services for the Department. Vendor shall not hold itself out as an employee or agent of the Department. The Department shall not provide Vendor with office space, support staff, equipment or tools, or supervision beyond the terms of this Agreement. Neither Vendor nor any of its staff are eligible for any State employee benefits, including, but not limited to, retirement benefits, insurance coverage or the like. Vendor and its staff shall not be considered employees of the Department or the State for any purpose, including for federal or State tax purposes. The Department shall not withhold taxes on behalf of Vendor. Vendor shall be responsible for payment of all taxes in connection with any income earned from performing this Agreement.

11.2 Compliance with the Law and Regulations.

11.2.1 Vendor and its employees, agents, officers, directors, approved contractors and subcontractors shall comply with all applicable federal, state, international, and local laws, rules, ordinances, codes, regulations and orders when performing within the scope of this Agreement, including without limitation, all laws applicable to the prevention of discrimination in employment, the administrative rules of the Iowa Department of Management and the Iowa Civil Rights Commission which pertain to equal employment opportunity and affirmative action, laws relating to prevailing wages, occupational safety and health standards, prevention of discrimination in employment, payment of taxes, gift laws, lobbying laws, and laws relating to the use of targeted small businesses as subcontractors or suppliers. Vendor shall comply with any applicable reporting and compliance standards of the Iowa Department of Management regarding equal employment. Vendor may be required to submit its affirmative action plan to the Iowa Department of Management to comply with the requirements of 541 Iowa Administrative Code Chapter 4. Vendor shall make the provisions of this section a part of its contracts with any subcontractors providing goods or services related to Vendor's performance of this Agreement;

11.2.2 Vendor shall give notice to any labor union with which it has a bargaining or other agreement of its commitment under this section of the Agreement. Vendor shall make the provisions of this section a part of its contracts with any subcontractors providing goods or services related to the fulfillment or performance of this Agreement;

11.2.3 The Department may consider the failure of Vendor to comply with any law or regulation as a material breach of this Agreement.

11.2.4 Compliance with Iowa Code chapter 8F. The Contractor certifies it will comply with the requirements of the Iowa Code chapter 8F. The Contractor shall forward any compliance documentation, including but not limited to certifications, and any compliance documentation received from subcontractors by the Contractor to the Department.

11.2.5 Compliance with Federal Funding Accountability and Transparency Act. If the Contract is subject to the provisions of 2 CFR Chapter 1 Part 170, the Contractor certifies it will comply with the requirements of this Act. The Contractor shall forward any required documentation, including but not limited to certifications to the Department.

11.3 Confidentiality. Vendor and its employees, agents, approved contractors and subcontractors may have access to Confidential Information, data, software, hardware, programs or other information or property possessed, owned or maintained by the Department or the State ("Department Property") to the extent necessary to carry out its responsibilities under the Agreement. Such Department Property shall at all times remain the property of the Department and/or the State. Vendor shall preserve the confidentiality of Department Property disclosed or furnished by the Department to Vendor and shall maintain procedures for safeguarding such property. Vendor will designate one individual who shall remain the responsible authority in charge of all Department Property collected, used, or disseminated by Vendor in connection with the performance of this Agreement. Vendor shall accept responsibility for providing adequate supervision and training to its agents, employees and any approved contractors and subcontractors to ensure compliance with the terms of this Agreement. Vendor and its employees, agents, and any approved contractors or subcontractors may be required by the Department to execute confidentiality or non-disclosure agreements to obtain access to certain Department Property. Vendor and its employees, agents, approved contractors and subcontractors shall not disclose, publish, reproduce, disseminate or otherwise use any Department Property received, collected, maintained, or used in the course of performance of the Agreement except as permitted by the Department to enable Vendor to perform its obligations under this Agreement and except as required by applicable laws, rules or regulations, either during the term of this Agreement or thereafter. Vendor agrees to return any and all Department Property received, collected, accessed, maintained, created, or used in the course of the performance of the Agreement in whatever form it is maintained promptly at the request of the Department. In the event that Vendor receives a request for access to any Department Property, Vendor shall immediately communicate such request to the Department for consideration and handling.

Vendor shall indemnify the Department, the State and all other Indemnitees in the manner provided for indemnification elsewhere in this Agreement for a violation of this section. In the event of a breach of this section, the Department may terminate this Agreement immediately without notice of default and opportunity to cure. Vendor acknowledges that the disclosure of any Confidential Information of the Department or the State may give rise to continuing irreparable injury to the Department and others that is inadequately compensable in damages at law. Accordingly, and without prejudice to any other remedy available to the Department, the Department will be entitled to injunctive relief. Vendor's obligations under this section shall survive expiration or termination of this Agreement.

11.4 Amendments. This Agreement may be amended in writing from time to time by mutual consent of the parties. Both parties must execute all amendments to this Agreement.

11.5 Third Party Rights. No person other than the parties hereto, their respective successors and permitted assigns, the State and Governmental Entities may rely on or derive any rights pursuant to or under this Agreement. This Agreement is intended to benefit only the Department, the State, Governmental Entities and the Vendor.

11.6 Choice of Law and Forum.

11.6.1 This Agreement shall be governed in all respects by, and construed in accordance with, the laws of the state of Iowa, without giving effect to the choice of law principles thereof;

11.6.2 Any and all litigation or actions commenced in connection with this Agreement, including after expiration or termination of this Agreement, shall be brought in Des Moines, Iowa, in Polk County District Court for the State of Iowa, if jurisdiction is proper. However, if jurisdiction is not proper in the Iowa District Court for Polk County, but is proper only in a United States District Court, the matter shall be commenced in the United States District Court for the Southern District of Iowa, Central Division. Vendor irrevocably: (i) consents and agrees that any legal or equitable action or proceeding arising under, in connection with or arising out of this Agreement shall be brought and maintained exclusively in the aforesaid courts; (ii) submits to and accepts, with respect to any such action or proceeding, for it and in respect of its properties and assets regardless of the physical or legal situs thereof, generally and unconditionally, the jurisdiction of the aforesaid courts; and (iii) waives any objection to such jurisdiction based on forum non conveniens or otherwise;

11.6.3 This provision shall not be construed as waiving any immunity to suit or liability, in state or federal court, which may be available to the Department or the State, including sovereign immunity, governmental immunity, immunity based on the Eleventh Amendment to the Constitution of the United States or otherwise;

11.6.4 Vendor irrevocably consents to service of process by certified or registered mail addressed to the Vendor's designated agent. The Vendor appoints Jon Coss, CEO, as its agent to receive service of process. If for any reason the Vendor's agent for service is unable to act as such or the address of the agent changes, Vendor shall immediately appoint a new agent and provide the Department with written notice of the change in agent or address. Any change in the appointment of the agent or address will be effective only upon actual receipt by the Department. Nothing in this provision will alter the right of the Department to serve process in any other manner permitted by law;

11.6.5 This Section 11.6 shall survive termination of this Agreement.

11.7 Assignment and Delegation. This Agreement may not be assigned, transferred or conveyed in whole or in part without the prior written consent of the other party, except that the Department may assign, transfer, or convey this Agreement, in whole or in part, to any State agency, Governmental Entity or unit of State government that succeeds the Department's duties hereunder or otherwise assumes responsibility for functions or duties currently assumed by the Department to which the Deliverables relate. For purposes of construing this clause, a transfer of a controlling interest in Vendor, a merger, sale or consolidation of Vendor, or a sale of substantially all of Vendor's assets shall be considered an assignment. Vendor agrees that it shall provide the Department with the earliest possible advance notice of any proposed sale or transfer or any controlling interest in or substantial assets of Vendor and of any proposed merger, sale or consolidation of Vendor. Vendor agrees that it shall not use this Agreement, or any portion thereof, for collateral or to otherwise secure any financial obligation of Vendor or any affiliate thereof without the prior written consent of the Department.

11.8 Use of Subcontractors/Third Parties. None of the services to be provided by Vendor pursuant to this Agreement shall be subcontracted or delegated to any Third Party without the prior written consent of the Department. The Department's consent shall not be deemed in any way to provide for the incurrence of any additional obligation of the Department, whether financial or otherwise. Any subcontract to which the Department has consented shall be in writing and shall in no way alter the terms and conditions of this Agreement. All subcontracts shall be subject to the terms and conditions of this Agreement and to any conditions of approval that the Department may deem necessary. Vendor is solely liable for any and all

payments that may be due to a subcontractor pursuant to any subcontract. Vendor shall indemnify and hold harmless the Department and the State from and against any and all claims, demands, liabilities, suits, actions, damages, losses, costs and expenses of every kind and nature whatsoever arising as a result of Vendor's breach of any subcontract into which it enters, including Vendor's failure to pay any and all amounts due to any subcontractor. In addition, the Department is not responsible for any failure of any subcontractor to pay any amounts that may be due to Vendor, and Vendor may not refuse to perform its obligations under this Agreement for any such failure. If Vendor fails, neglects or refuses to pay promptly, as due, any claim for labor or services furnished to Vendor or any subcontractor by any person in connection with the Deliverables provided under this Agreement, the Department may pay such claim and charge the amount of the payment against funds due or to become due Vendor under this Agreement. The payment of a claim in the manner authorized in this paragraph shall not relieve Vendor or its surety from any obligation with respect to any unpaid claims. All subcontracts shall contain provisions which allow the Department to access the subcontractor's books, documents, and records and for inspections of work, as required of Vendor herein. No subcontract or delegation of work shall relieve or discharge Vendor from any obligation, provision, or liability under this Agreement. Vendor shall remain responsible for such performance and shall be fully responsible and liable for all acts or omissions of any such contractor or subcontractor. Any action of a subcontractor, which, if done by Vendor, would constitute a breach of this Agreement, shall be deemed a breach by Vendor and have the same legal effect.

11.9 Integration. This Agreement represents the entire agreement between the parties concerning the subject matter hereof, and neither party is relying on any representation that may have been made which is not included in this Agreement. The Department shall not be bound by any "shrink-wrap" agreement, "click-wrap" agreement, or "sneakwrap" agreement (or any other similar agreement) that may accompany or relate to a Deliverable. Vendor acknowledges that it has thoroughly read this Agreement and all related schedules, exhibits, and other documents and has had the opportunity to receive competent advice and counsel necessary for it to form a complete understanding of all rights and obligations herein and to accept same freely and without coercion of any kind. Accordingly, this Agreement shall not be construed or interpreted against the Department on the basis of draftsmanship or preparation thereof.

11.10 Obligation Beyond Agreement Term. This Agreement shall remain in full force and effect to the end of the specified term or until terminated or canceled pursuant to this Agreement. Vendor's obligations under this Agreement which by their nature would continue beyond the termination of this Agreement, including, by way of illustration and not by limitation, those obligations set forth in Sections 4, 5, 7, 8, 9, 11.2, 11.3, 11.6, 11.8, 11.10 - 11.16, 11.18, 11.19, 11.24, 11.25, 11.28, 11.30, 11.32, 11.33, and 11.36 – 11.38 shall survive termination of this Agreement and/or termination of Support. [Note: Department may need to revise these references after negotiation of Agreement is completed.]

11.11 Supersedes Former Agreements. This Agreement supersedes all prior Agreements between the Department and Vendor for the goods, services and other Deliverables provided in connection with this Agreement.

11.11 Waiver. Except as specifically provided for in a waiver signed by duly authorized representatives of the Department and Vendor, failure by either party at any time to require performance by the other party or to claim a breach of any provision of this Agreement shall not be construed as affecting any subsequent breach or the right to require performance with respect thereto or to claim a breach with respect thereto. No term or condition of this Agreement shall be held to be waived, modified, or deleted except by an instrument, in writing, signed by the parties hereto.

11.13 Notices.

11.13.1 Notices. Notices under this Agreement shall be in writing and delivered to the representative of the party to receive notice (identified below) at the address of the party to receive notice as it appears below or as otherwise provided for by proper notice hereunder. The effective date for any notice under this Agreement shall be the date of delivery of such notice (not the date of mailing) which may be effected by certified U.S. Mail return receipt requested with postage prepaid thereon or by recognized overnight delivery service, such as Federal Express or UPS:

If to the Department:
Randy Mayer
Iowa Department of Public Health
Lucas State Office Building
321 E. 12th Street
Des Moines, IA 50319-0075

If to Vendor:
Jon Coss, CEO
Pondera Solutions
80 Blue Ravine Rd, Ste 250
Folsom, CA 95630

11.13.2 Any notice or communication sent by certified U.S. Mail under this Agreement shall be deemed given upon receipt as evidenced by the U.S. Postal Service return receipt card, or if sent by overnight delivery service, upon receipt as evidenced by the signature attained by the carrier;

11.13.3 From time to time, the parties may change the name and address of a party designated to receive notice. Such change of the designated person shall be in writing to the other party and as provided herein.

11.14 Cumulative Rights. The various rights, powers, options, elections and remedies of the Department and the State provided in this Agreement shall be construed as cumulative and no one of them is exclusive of the others or exclusive of any rights, remedies or priorities allowed the Department and the State by law, and shall in no way affect or impair the right of the Department or the State to pursue any other contractual, equitable or legal remedy to which the Department and the State may be entitled. The election by the Department or the State of any one or more remedies shall not constitute a waiver of the right to pursue other available remedies.

11.15 Severability. If any provision of this Agreement is determined by a court of competent jurisdiction to be invalid or unenforceable, such determination shall not affect the validity or enforceability of any other part or provision of this Agreement.

11.16 Time is of the Essence. Time is of the essence with respect to Vendor's performance of its obligations under this Agreement. Vendor shall ensure that all personnel and any other subcontractors of Vendor providing services to the Department are responsive to the Department's requirements and requests in all respects.

11.17 Authorization. Vendor represents and warrants that it has the right, power and authority to enter into and perform its obligations under this Agreement and that it has taken all requisite action (corporate, statutory, or otherwise) to approve execution, delivery and performance of this Agreement, and this Agreement constitutes a legal, valid and binding obligation of Vendor, enforceable in accordance with its terms.

11.18 Successors in Interest. All the terms, provisions, and conditions of the Agreement shall be binding upon and inure to the benefit of the parties' hereto and their respective successors, assigns, and legal representatives.

11.19 Headings or Captions and Terms. The section headings or captions are for identification purposes only and do not limit or construe the contents of the sections. Unless the context of this Agreement otherwise clearly requires, references to the plural include the singular, references to the singular include the plural, and the word "or" has the inclusive meaning represented by the phrase "and/or." The words "include" and "including" shall be deemed to be followed by the phrase "without limitation." The words "thereof," "herein," "hereunder," and similar terms in this Agreement refer to this Agreement as a whole and not to any particular provision of this Agreement.

11.20 Multiple Counterparts. This Agreement may be executed in several counterparts, all of which when taken together shall constitute one contract binding on all parties, notwithstanding that all parties are not signatories to the same counterpart. Each copy of this Agreement so executed shall constitute an original.

11.21 Not a Joint Venture. Nothing in this Agreement shall be construed as creating or constituting the relationship of the partnership, joint venture (or other association of any kind or agent/principal relationship) between the parties hereto. No party, unless otherwise specifically provided for herein, has the authority to enter into any agreement or create an obligation or liability on behalf of, in the name of, or binding upon, another party to this Agreement.

11.22 Additional Provisions. The parties agree that if an Addendum, Rider, Schedule, Appendix or Exhibit is attached hereto by the parties, and referred to herein, then the same shall be deemed incorporated herein by reference.

11.23 Further Assurances and Corrective Instruments. The parties agree that they will, from time to time, execute, acknowledge and deliver, or cause to be executed, acknowledged and delivered, such supplements hereto and such further instruments as may reasonably be required for carrying out the expressed intention of this Agreement.

11.24 Obligations of Joint Entities. If Vendor is a joint entity, consisting of more than one individual, partnership, corporation or other business organization, all such entities shall be jointly and severally liable for carrying out the activities and obligations of this agreement, and for any default of such activities and obligations.

11.25 Delays or Impossibility of Performance. Neither party shall be in default under this Agreement if performance is prevented, delayed or made impossible to the extent that such prevention, delay, or impossibility is caused by a "force majeure." The term "force majeure" as used in this Agreement includes an event that no human foresight could anticipate or which if anticipated, is incapable of being avoided. Circumstances must be abnormal and unforeseeable, so that the consequences could not have been avoided through the exercise of all due care, such as acts of God, war, civil disturbance and other similar catastrophic events or causes. The delay or impossibility of performance must be beyond the control and without the fault or negligence of the parties. "Force majeure" does not include: financial difficulties of the Vendor or any parent, subsidiary, affiliated or associated company of Vendor or any subcontractor used by Vendor; claims or court orders that restrict Vendor's ability to deliver the Deliverables contemplated by this Agreement; strikes; labor unrest; or supply chain disruptions. If delay results from a subcontractor's or supplier's conduct, negligence or failure to perform, the Vendor shall not be excused from compliance with the terms and obligations of the Vendor unless the subcontractor or supplier is prevented from timely performance by a "force majeure" as defined in this Agreement. If a "force majeure" delays or prevents

the Vendor's performance, the Vendor shall immediately use its best efforts to directly provide alternate, and to the extent possible, comparable performance. Comparability of performance and the possibility of comparable performance shall be determined solely by the Department. The party seeking to exercise this provision and not perform or delay performance pursuant to a "force majeure" shall immediately notify the other party of the occurrence and reason for the delay. The parties shall make every effort to minimize the time of nonperformance and the scope of work not being performed due to the unforeseen events. Dates by which the Vendor's performance obligations are scheduled to be met will be extended only for a period of time equal to the time lost due to any delay so caused.

11.26 Material Breaches. The references in this Agreement to specific material breaches of this Agreement shall not be construed as implying that other breaches of this Agreement are not material.

11.27 Right of Inspection. Vendor shall allow the Department, or anyone designated by the Department, to inspect its facilities and books and records at all reasonable times in order to monitor and evaluate performance of this Agreement.

11.28 Taxes. Vendor shall be responsible for paying any taxes incurred by Vendor in the performance of this Agreement. The Department and the State are exempt from the payment of State sales and other taxes.

11.29 Exclusivity. This Agreement is not exclusive. During the term of this Agreement, the Department may obtain similar services from other service providers.

11.30 Award of Related Agreements. The Department may undertake or award supplemental or successor agreements for work related to this Agreement. Vendor shall cooperate fully with other contractors, consultants and other persons who may be engaged by the Department or the State in connection with this Agreement. Vendor will ensure that any of its contractors or subcontractors that have been approved by the Department will abide by this provision.

11.31 Sovereign Immunity. The Department and the State do not waive sovereign immunity by entering into this Agreement and specifically retain and reserve the defense of sovereign immunity and all defenses available to them under State and federal laws, rules and regulations for any claim arising out of or related to this Agreement.

11.32 Disclaimer. All information contained in the RFP and any appendices or attachments thereto reflect the information available to the Department at the time the above-cited documents were prepared. The Department does not warrant the accuracy of any such information and shall not be liable for any errors or omissions, or the results of errors or omissions, which may be discovered, at any time, to exist in those documents.

11.33 Procurement by other Governmental Entities. Vendor acknowledges and agrees that other State agencies, courts, boards, commissions, establishments, units and other Governmental Entities may procure services and Deliverables from Vendor under this Agreement.

11.34 Assignment of Third Party Warranties. Vendor hereby assigns and shall assign to the Department any and all existing and future warranties, indemnities and other benefits obtained or available from the licensor of any Third Party software or the manufacturer of any equipment or replacement parts provided or otherwise furnished in connection with this Agreement.

11.35 Attorney's Fees and Expenses. In the event Vendor defaults in any obligations under this Agreement, Vendor shall pay to the Department all costs and expenses (including, without limitation, the reasonable value of time of the Attorney General's Office and the costs, expenses and attorney fees of other

counsel retained by or on behalf of the Department) incurred by the Department in enforcing this Agreement or any of its rights and remedies with respect thereto.

11.36 Contract Compliance Audit. Vendor agrees that the Department or a representative of its selection may conduct a complete contract compliance audit at least once annually during the term of this Agreement and after termination or expiration of this Agreement to determine whether or not the Vendor is complying with the terms of this Agreement, criteria established for access to Department Property, State and federal laws regarding Confidential Information, and any other applicable laws and regulations. Vendor shall promptly comply with and correct any deficiencies noted in the audit report as audit exceptions and will promptly implement any recommendations reasonably requested by the Department or its representatives. Vendor shall not impose any charge or fee in connection with any contract compliance audit.

11.37 Disclaimer. THE WARRANTIES UNDER THIS AGREEMENT ARE IN LIEU OF ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, THE IMPLIED WARRANTIES OF MERCHANT ABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

11.38 Limitation of Vendor Liability.

11.38.1 Maximum Liability. The maximum liability of the Vendor under this Agreement is two times the Contract Value. Contract Value is defined as the aggregate total compensation pertaining to the project paid by the Department to the Vendor during the Term of the Agreement.

11.38.2 Exclusion of Damages. Vendor shall not be liable under this Agreement for any indirect, punitive, special, incidental, exemplary or consequential damages, including loss of use, lost profits, or loss of or damage to data or information, of any kind, in connection with or arising out of this Agreement.

11.38.3 Prohibited Limitations of Vendor Liability. Under no circumstances shall the foregoing limitation in 11.37.1 and 11.37.2 apply to:

i. Intentional torts, criminal acts, fraudulent conduct, intentional or willful misconduct, or gross negligence;

ii. Claims related to death, bodily injury, or damage to real or personal property;

iii. Any contractual obligations of the Vendor pertaining to indemnification, intellectual property, liquidated damages, compliance with applicable laws, or confidential information; or

iv. Claims arising under provisions of the Agreement calling for indemnification of the State for Third-Party claims against the State for bodily injury to persons or for damage to real or tangible personal property caused by the Vendor's negligence or willful conduct.

11.39 Notification of Events. Vendor shall notify the Department in writing if any of the following has been engaged in by or occurred with respect to Vendor or any corporation, shareholder or entity having or owning a controlling interest in Vendor:

11.39.1 Vendor files or permits the filing against it of a case or other proceeding seeking liquidation,

reorganization, or other relief with respect to itself or its debts under any bankruptcy, insolvency, or other similar law now or hereafter in effect; or filing an answer admitting the material allegations of a petition filed against it in any involuntary case or other proceeding commenced against it seeking liquidation, reorganization, or other relief under any bankruptcy, insolvency, or other similar law now or hereafter in effect with respect to it or its debts; or consenting to any such relief or to the appointment of or taking possession by any such official in any voluntary case or other proceeding commenced against it seeking liquidation, reorganization or other relief under any bankruptcy, insolvency, or other similar law now or hereafter in effect with respect to it or its debts; or

11.39.2 Seeking or suffering the appointment of a trustee, receiver, liquidator, custodian or other similar official of it or any substantial part of its assets; or

11.39.3 Making an assignment for the benefit of creditors; or

11.39.4 Failing, being unable, or admitting in writing the inability generally to pay its debts or obligations as they become due or failing to maintain a positive net worth and such additional capital and liquidity as is reasonably adequate or necessary in connection with Vendor's performance of its obligations under this Agreement; or

11.39.5 An order is entered approving an involuntary petition to reorganize the business of Vendor for all or part of its property; or

11.39.6 If a writ or warrant of attachment, execution, distraint, levy, possession or any similar process that may materially affect the operation of Vendor is issued by any court or administrative agency against all or any material portion of Vendor's property; or

11.39.7 Taking any action to authorize any of the foregoing.

IN WITNESS WHEREOF, in consideration of the mutual covenants set forth above and for other good and valuable consideration, the receipt, adequacy and legal sufficiency of which are hereby acknowledged, the parties have entered into the above Agreement and have caused their duly authorized representatives to execute this Agreement.

State of Iowa, acting by and through the Iowa Department of Public Health

By: DeAnn M Decker

Name: DeAnn Decker

Title: Interim Director, Division of Behavioral Health

Pondera Solutions

By: _____

Greg Loos

President